

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval For Other Than Full and Open Competition

Purchase Request # APR F000944-25-2000003

1. **Contracting Activity:** Department of Veterans Affairs (VA), National Cemetery Administration (NCA), Contracting Service is procuring on behalf of Massachusetts National Cemetery for Acadia National Cemetery is located 1799 US RT 1, Jonesboro, Maine, 04648.
2. **Nature and/or Description of the Action Being Processed:** This is a justification and approval for Other Than Full and Open Competition to establish a follow-on contract for grounds maintenance services. The follow-on contract will be a bridge contract between April 1, 2025 through May 31, 2025. The bridge contract is to cover grounds maintenance services due to the current contract expiring March 31, 2025 and it will take a short period to re-compete the contract.
3. **Description of Supplies/Services Required to Meet the Agency's Needs:**
Acadia National Cemetery is in a rural area which has limited resources available. Lander Group is the incumbent contractor performing grounds maintenance services at Acadia National Cemetery. The contractor shall be responsible for:
Providing all grounds maintenance services including, but not limited to maintenance of grounds, regular mowing, weed eating, blade edging, trimming, removal of leaves and debris, sweeping or blowing off roads and sidewalks, and trash removal.
All services described in the Work Statement, including technical specification, schedules, addenda, clauses, terms, and conditions of the contract shall form the complete scope of work. The period of performance is from 04/01/2025 through 05/31/2025.

Period of performance: 04/01/2025 – 05/31/2025

Estimated total value: \$29,081.00

4. **Statutory Authority Permitting Other than Full and Open Competition:**

- (1) Only one responsible source and no other supplies or services will satisfy agency requirements per FAR 6.302-1;
- ☐ (2) Unusual and compelling urgency per FAR 6.302-2;
- ☐ (3) Industrial mobilization, engineering, developmental or research capability or expert services per FAR 6.302-3;
- ☐ (4) International agreement per FAR 6.302-4
- X (5) Authorized or required by statute FAR 6.302-5;

Select the appropriate VAAR clause used below:

- ☒ VAAR 819.7008 Sole source awards to a certified service-disabled veteran-owned small business (SDVOSB); or
 - ☐ VAAR 819.7009 Sole source awards to a certified veteran-owned small business (VOSB)
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- ☐ (6) National security per FAR 6.302-6;
 - ☐ (7) Public interest per FAR 6.302-7;

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5. **Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):**

Lander Group is the incumbent contractor currently providing services. They are familiar with the requirement and the facility to continue to provide services for the interim while a long term long is being solicited.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:**

The current contract is due to expire March 31, 2025. However, NCA contracting requires a two-month interim to solicit a new contract. The new requirement will be solicited as 100% SDVOSB in the next 30 days. Lander's Group is a SDVOSB vendor certified in VetCerts. For this interim, the incumbent will continue to provide services while a long-term contract can be established.

Any other potential sources would require additional costs to perform services due to the short duration of service required. The offerors would have to consider set up cost. In addition, for any new contractor to perform services, it would require background clearance that would require more time and cost.

7. **Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable:**

Contracting Officer has determined the costs to be fair and reasonable based on comparison to Independent Government Cost Estimate and historical pricing.

8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:**

Limited market research was conducted for this interim because it is cost prohibited and not advantageous to solicited and bring on a new contractor. For the long-term contract market research shall be conducted accordingly and solicited as deem appropriate to the findings of the market research.

9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:**

No further information.

10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:**

Lander Group
36A E Chipmunk Lane
Greenville, ME 04441-3191

11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** The Contracting Officer plans to solicit for a new contract expected to be awarded by June 1, 2025. During the short interim of 60 days, NCA will issue a new solicitation as a set aside to SDVOSBs.

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12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

CHRISTOPHER
HICKEY

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CHRISTOPHER HICKEY
Date: 2025.03.25 13:47:53
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Chris Hickey
Director
Massachusetts National Cemetery Complex

Date

13. **Contracting Officer or Designee's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

ANTIONETTE
COLLINS

Digitally signed by
ANTIONETTE COLLINS
Date: 2025.03.25 14:12:22
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Antionette Collins
Contracting Officer
VA National Cemetery Administration

Date